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| <p>5.</p> | <p><a href="#"><u>30-2025-01525674-CU-NP-WJC</u></a><br/> Lister vs. Valley<br/> Post-Acute And<br/> Rehab LLC</p> | <p>Before the Court are eight (8) motions for sanctions (“Motions”) brought by plaintiff Kathleen Rose Lister, by and through her successor in interest, Hattie Davis (“Plaintiff”) against defendant Valley Post-Acute and Rehab, LLC (“Defendant”). ROAs 129, 136, 137, 138, 139, 140, 141, 150.</p> <p>Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 128(a)(5), 2023.010, 2023.030, 2025.450(h), 2030.290(c), 2031.300(c), and 2033.280, imposing monetary, issue, and evidentiary sanctions upon Defendant and Defendant’s counsel for Defendant’s failure to comply with the Court’s April 21, 2026, order to serve responses to Plaintiff’s discovery demands. ROAs 129, 136, 137, 138, 139, 140, 141, 150, 106.</p> <p>Additionally, Plaintiff seeks an order: (i) admitting the genuineness of any documents and the truth of any matters specified in Plaintiff’s request for admissions, set one (“RFA”); and (ii) imposing additional monetary discovery sanctions upon Defendant and Defendant’s counsel of record, jointly and severally, in the amount of \$3,000.00. ROA 129 p. 7.</p> <p>In total, Plaintiff seeks \$27,500.00 in sanctions for Defendant’s alleged discovery abuses and failure to obey the Court’s orders.</p> <p>Relevant Timeline of Events</p> <p>On January 13, 2026, Plaintiff served a motion to compel the deposition of Defendant’s person most qualified upon Defendant by email. ROA 24, p.76.</p> <p>On January 26, 2026, Plaintiff served the following motions upon Defendant by email: (i) a motion to deem facts admitted as to Plaintiff’s RFA; (ii) a motion to compel responses to request for production, set one; (iii) a motion to compel responses to special interrogatories, set one; and (iv) a motion to compel responses to form interrogatories, set one. ROA 37, p.28; ROA 34, p.29; ROA 35, p.29; ROA 36, p.29.</p> <p>On January 27, 2026, the Court ordered the parties to attend</p> |
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|  | <p>an informal discovery conference (“IDC”) facilitated by the Court, scheduled for February 18, 2026. ROAs 40, 43, 47, 48.</p> <p>On February 9, 2026, the Court continued the IDC to March 17, 2026. ROA 61.</p> <p>On March 13, 2026, Plaintiff served the following additional motions upon Defendant by email: (i) a motion to compel responses to requests for production, set two; (ii) a motion to compel responses to requests for production, set three; and (iii) a motion to compel responses to special interrogatories, set two. ROA 84, p.28; ROA 83, p.19; ROA 85, p.19. The Court immediately set these disputes for a separate IDC scheduled for April 21, 2026. ROAs 81, 87, 89.</p> <p>On March 13, 2026, the Court continued the IDC scheduled for March 17, 2026, to coincide with the IDC scheduled for April 21, 2026, to consolidate the resolution of all the parties’ discovery disputes. ROA 99.</p> <p>On April 21, 2026, the parties attended the IDC as ordered. ROA 106. In the Court’s ensuing order, it noted that the following were undisputed: (i) no discovery responses have been provided; (ii) objections have been waived; and (iii) there is no substantial justification for prior non-compliance. ROA 106. Additionally, the parties submitted to the following Order of the Court: that Defendants are ordered to serve “verified, objection-free responses . . . by no later than May 21, 2026, to all outstanding discovery[,]” and that “sanctions are imposed in the amount of \$2,500 on Defendants” and Defendants’ counsel, “jointly and severally, due and payable to Garcia and Coman no later than 30 days from today [i.e. May 21, 2026].” <i>Id.</i></p> <p>Despite Plaintiff’s repeated efforts to facilitate Defendant’s compliance with the Court’s Order, Defendant has failed to comply. ROA 150, p. 12; ROA 141, p. 15; ROA 140, p. 12; ROA 139, p. 13; ROA 138, p. 15; ROA 137, p. 12; ROA 136, p. 12; ROA 129, p. 9.</p> <p>Discretionary Sanctions</p> <p>California Code of Civil Procedure Section 128 endows the Court with the power to “compel obedience to its</p> |
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|  |  | <p>judgments, orders, and process . . . .” Cal. Civ. Proc. Code § 128(a)(4).</p> <p>California Code of Civil Procedure Section 177.5 provides that “[a] judicial officer shall have the power to impose reasonable monetary sanctions, not to exceed fifteen hundred dollars (\$1,500) . . . payable to the court, for <i>any</i> violation of a lawful court order . . . done without good cause or substantial justification.” Cal. Civ. Proc. Code § 177.5 (emphasis added); <i>see also People v. Aguirre</i>, 64 Cal. App. 5th 652, 668 (2021) (stating Section 177.5 “does not require a ‘willful violation, but merely one committed . . . without a valid excuse.’” (citations omitted)).</p> <p>A court imposing sanctions pursuant to Section 177.5 must “recite in detail the conduct or circumstances justifying the order.” Cal. Civ. Proc. Code § 177.5; <i>see also People v. Edwards</i>, 88 Cal. App. 5th 1259, 1273 (2023) (finding a court’s mere recitation of the words of the statute insufficient to support the imposition of sanctions).</p> <p>Here, Defendant does not offer, and the Court does not find, any substantial justification for Defendant’s willful and ongoing noncompliance of this Court’s order to serve responses to Plaintiff’s discovery requests. Thus, Defendant is liable for up to \$1,500 in monetary sanctions pursuant to California Code of Civil Procedure Section 177.5.</p> <p>Discretionary Sanctions for Misuse of the Discovery Process</p> <p>“California discovery law authorizes a range of penalties, including monetary, issue, evidence, and terminating sanctions, for conduct amounting to ‘misuse of the discovery process.’” <i>Doppes v. Bentley Motors, Inc.</i>, 174 Cal. App. 4th 967, 991 (2009); <i>see also</i> Cal. Civ. Proc. Code § 2023.030(a)-(d) (granting the court authority to impose monetary, issue, evidentiary, and terminating sanctions).</p> <p>“The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. <i>Doppes, supra</i>, 174 Cal. App. 4th at 992 (citing <i>Reedy v. Bussell</i>, 148 Cal. App. 4th 1272, 1294 (2007)). In choosing a sanction, “[t]he trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery.” <i>Id.</i></p> |
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|  |  | <p>To ensure proportionality, trial courts should generally take an “incremental” approach—that is, they should “attempt[ ] less severe alternative[ ] [sanctions]” <i>unless</i> the “record clearly shows lesser sanctions would be ineffective.” <i>Lopez v. Watchtower Bible and Tract Soc’y of New York</i>, 246 Cal. App. 4th 566, 604 (2016) (emphasis added).</p> <p>“Only two facts are absolutely prerequisite to the imposition of a [nonmonetary] sanction. There must be a failure to comply, and the failure must be willful.” <i>Calvert Fire Ins. Co. v. Cropper</i>, 141 Cal. App. 3d 901, 904 (1983).</p> <p>Willfulness in the context of nonmonetary sanctions means a “conscious or intentional failure to act, as distinguished from accidental or involuntary noncompliance . . . .” <i>Deyo v. Kilbourne</i>, 84 Cal. App. 3d 771, 787-788 (1978). “Lack of diligence may be deemed willful in the sense that the party understood his obligation, had the ability to comply, and failed to comply.” <i>Id</i> at 787; <i>see Housing Auth. v. Gomez</i>, 26 Cal. App. 3d 366, 372-73 (1972) (stating that a court may “justifiably conclude that [a party] ha[s] no intention of being deposed and would continue to engage in evasive tactics to achieve that end” where the party has already failed to appear for deposition and respond to discovery requests, including by disobeying a court order to do so).</p> <p>Here, as outlined above, the Court issued a clear order for Defendant to serve responses to Plaintiff’s discovery demands and the parties submitted to said order. ROA 106. It is unequivocal that Defendant failed to comply.</p> <p>Despite Plaintiff’s continuing efforts to ensure Defendant’s compliance, Defendant <i>still</i> has refused to comply. The Court is convinced that Defendant has no intention of responding to Plaintiff’s discovery demands or obeying this Court’s order to do so. Accordingly, the Court finds that Defendant’s discovery misuse is willful and that monetary and evidentiary sanctions are appropriate to prevent future abuse.</p> <p>Assigning Liability for Sanctions</p> <p>California Code of Civil Procedure Section 2023.030 permits</p> |
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|  |  | <p>a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or any attorney advising that conduct . . .” or any party who “unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal. Civ. Proc. Code § 2023.030(a). Courts <i>shall</i> impose monetary sanctions absent a finding “that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” <i>Id.</i></p> <p>When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020). The burden then shifts to the attorney to prove that they did not provide such advice. <i>Id.</i> (citing <i>Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993)); compare <i>Corns v. Miller</i>, 181 Cal. App. 3d 195, 200-201 (1986) (a court did not err in ordering monetary sanctions against an attorney where the attorney did not submit an opposition to the motion for sanctions, did not appear at the hearing, and failed to discharge his burden of proving he did not counsel disobedience) with <i>Kwan Software Eng’g, Inc. v. Hennings</i>, 58 Cal. App. 5th 57, 83 (2020) (finding substantial evidence that attorneys did not advise disobedience where attorneys provided multiple declarations, under penalty of perjury, in addition to e-mails and testimony in their defense).</p> <p>If the <i>client</i> engaged in the misconduct, for example, by refusing to answer discovery, hiding documents, or failing to appear for deposition, then sanctions should be imposed upon them. See <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 261 (finding no liability for counsel for monetary sanctions where client refused to submit to x-rays and attorney’s declarations shows attorney attempted to convince client to comply).</p> <p>If the <i>attorney</i> is responsible, for example, by instructing a client not to answer without substantial justification, failing</p> |
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|  | <p>to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. <i>See Ellis v. Toshiba America Info. Sys.</i>, 218 Cal. App. 4th 853, 879-80 (2013).</p> <p>If the Court finds that both share responsibility, then sanctions can be imposed jointly and severally. <i>See generally Cornerstone, supra</i>, 56 Cal. App. 5th at 799. (standards permitting monetary sanctions upon a party's attorney).</p> <p>"An attorney may only be penalized . . . for advising disobedience. It is not enough that the attorney's actions were in some way improper and contributed to the disobedience of the court order." <i>Corns, supra</i>, 181 Cal. App. 3d at 200; <i>see also Ghanooni, supra</i>, 20 Cal. App. 4th at 261 (finding the fact that plaintiff's counsel opposed a motion to compel did not give rise to an inference counsel advised disobedience). The <i>Ghanooni</i> court reversed a lower court's order imposing sanctions on both the client and the attorney and instead ordered sanctions only against the client. <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 261.</p> <p>Here, the Court finds that Defendant's failure to obey the Court's order to provide responses to Plaintiff's discovery requests is not attributable to client misconduct. Indeed, the Court finds that the record shows unequivocally that the misconduct is attributable to Defendant's counsel's discovery abuse. Accordingly, monetary sanctions are appropriate upon Defendant's counsel only.</p> <p>Determining a Reasonable Sanctions Amount</p> <p>Three principles guide the award and amount of attorney's fees and costs imposed as a discovery sanction. <i>See Cornerstone, supra</i>, 56 Cal. App. 5th at 790-91 (compulsion, causation, and reasonableness).</p> <p>"The amount of monetary sanctions is limited to the 'reasonable expenses, including attorney's fees' that a party incurred as a result of the discovery abuse." <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a</p> |
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|  | <p>reasonable award. <i>Id.</i> (citing <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007)).</p> <p>“After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions.” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1301 (2024) (emphasis added).</p> <p>Having considered the foregoing principles in light of Plaintiff’s counsel’s calculation of the expenses incurred in bringing these motions, the Court finds that Defendant’s counsel is liable for the reasonable sanctions amount of \$27,500, owed to Plaintiff’s counsel, pursuant to California Code of Civil Procedure Section 2023.010.</p> <p>However, the Court finds that the imposition of additional sanctions of up to \$1,500, pursuant to California Code of Civil Procedure Section 177.5, would be duplicative and disproportionate. Consequently, the Court elects not to impose sanctions under this latter authority.</p> <p>Accordingly, Plaintiff’s Motion for sanctions is <b>GRANTED</b> and evidentiary sanctions are <b>IMPOSED</b> as follows: (i) Defendant is precluded from presenting any evidence and/or testimony, and/or eliciting through direct or cross examination any matter as to the following issues: that Defendant had sufficient staff to meet the needs of its residents during the residency of Kathleen Rose Lister on an ongoing basis in compliance with 22 Code of Regulations § 72329.1; that Defendant did not know that their staff who provided “nursing services”, as the term is defined in 22 California Code of Regulations § 72311, to the Plaintiff were unfit to perform their job duties with Valley Post-Acute and Rehab LLC and employed them nonetheless; that Defendant’s managing agents did not know of the unfitness of their staff who provided “Nursing Services” to the Plaintiff to perform their job duties at Valley Post-Acute and Rehab LLC; that such actions by Valley Post-Acute and Rehab LLC were not the proximate cause of Kathleen Rose Lister suffering from avoidable, dehydration, hypernatremia, and ultimately sepsis, while</p> |
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|  | <p>she was a resident of the facility; and (ii) Defendant is precluded from presenting any evidence and/or testimony, and/or eliciting through direct or cross examination any matter as Defendant's Separate and Additional Defense Nos. 1, 6-7, 12-13, 21-23, 27-29, and 33-36.</p> <p>Additionally, the Court <b>IMPOSES</b> additional monetary sanctions upon Defendant's counsel of record, Buchholz, Harris, Levine &amp; Brennan, P.C., in the total collective amount of \$27,500, pursuant to California Code of Civil Procedure Section 2023.010, due and payable to Plaintiff's counsel, Garcia &amp; Coman, no later than ninety (90) days after receiving notice of this Order.</p> <p>The Court orders Clerk to give notice to the parties.</p> |
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